

		complaint on April 27, 2026. ROA 355. Plaintiff filed a first amended complaint on May 22, 2026. ROA 407. Plaintiff did not name PBS as a defendant in the first amended complaint, or in the Doe amendment to the first amended complaint plaintiff filed on June 10, 2026. ROA 407. Tupy dismissed PBS as a cross-defendant on May 26, 2026. ROA 397. PBS states plaintiff dismissed PBS on May 22, 2026 (Motion (ROA 391) at 3:11-12). The court file does not contain a request for dismissal of PBS filed by plaintiff on May 22, 2026 (or any time), but, as stated above, plaintiff's first amended complaint filed May 22, 2026 does not name PBS as a defendant. Moreover, plaintiff has not filed an opposition to PBS's instant motion or otherwise contested PBS's claim that plaintiff does not intend to proceed against PBS in this lawsuit. Accordingly, as neither plaintiff nor Tupy has opposed PBS's motion or otherwise contested PBS's claim that neither plaintiff nor Tupy intends to proceed against PBS in this lawsuit, and as no other party has opposed PBS's motion or otherwise indicated it intends to proceed against PBS in this lawsuit, to the extent PBS remains a party to the lawsuit at this time (it is not clear that it does), PBS is dismissed without prejudice from any pending complaint(s) and cross-complaint(s) and thus has no obligations under Stipulated Case Management Order No. 1. Clerk to give notice. <u>Status Conference</u> The court has reviewed the parties' joint* status conference statement filed August 27, 2026 (ROA 454), and based thereon continues the September 3, 2026 status conference to <u>January 7, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. *The August 27, 2026 joint status conference statement is not signed by counsel for cross-defendant Marvin Windows of Tennessee, LLC or counsel for defendant Carlisle Construction Materials LLC. The parties' next status conference should be joint, or should state the reason(s) all parties have not joined the statement. Clerk to give notice.
11 2:30 p.m.	Barnes v. Prospect Medical Systems, LLC 2025-01497633	<u>Attorneys Duane Morris LLP and Cyndie Chang's Motion to be Relieved as Counsel</u> Attorneys Duane Morris LLP and Cyndie Chang move to be relieved as counsel for defendant Prospect Medical Systems, LLC. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving parties and finds that Duane Morris LLP and Cyndie Chang have complied with the requirements of Rule 3.1362. The motion to be relieved as counsel is granted. The court's order shall

		become effective upon the filing of a proof of service showing service of the order on defendant Prospect Medical Systems, LLC. <u>Defendant Prospect Medical Systems, LLC is a limited liability company. This entity cannot represent itself. <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 n.5. Defendant Prospect Medical Systems, LLC must obtain representation or risk forfeiting important rights through nonrepresentation. <i>Id.</i> Defendant Prospect Medical Systems, LLC is ordered to obtain counsel and file evidence thereof with the court by October 8, 2026.</u> The moving parties, Attorneys Duane Morris LLP and Cyndie Chang, shall give notice of the court's order. The moving parties are also ordered to lodge and serve <u>by September 10, 2026</u> a revised proposed order (utilizing Judicial Counsel form MC-053) that (i) has all items completed and (ii) includes the above underlined statement in Item No. 13.
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